

Pushpa Rani v. Noida Power Company Ltd.

High Court of Judicature at Allahabad · Division Bench · 22 November 2011 · WRIT - C No. 62845 of 2011 · **Writ disposed; petitioner relegated to CGRF and Ombudsman under clause 7.10.**

HEADNOTE

A writ challenging an electricity bill of Noida Power Company Ltd. was disposed of on the footing that the consumer has a remedy before the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Electricity Supply Code, 2005; any application so filed is to be decided expeditiously.

FACTUAL SUMMARY

Pushpa Rani filed a writ petition in the High Court of Judicature at Allahabad against an electricity bill issued by Noida Power Company Ltd. On 3 November 2011 a Division Bench issued notice by registered post and dasti and listed the matter for 22 November 2011. On the listed date, counsel for the petitioner and counsel for the licensee were heard. The order records no further facts about the connection, tariff, or the amount or nature of the disputed bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF and Ombudsman route for billing grievances

HOLDING

A consumer challenging an electricity bill in writ has a remedy by approaching the Consumer Grievance Redressal Forum and the Ombudsman under clause 7.10 of the Electricity Supply Code, 2005; the writ was disposed of with a direction that any application so filed be decided expeditiously. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DISPUTED ELECTRICITY BILL

The Court did not examine the bill; the petitioner was left to the clause 7.10 forum and Ombudsman. ¶ 3